

THE BUREAU OF INDIAN STANDARDS ACT, 2016

ACT NO. 11 OF 2016 (ENACTED BY PARLIAMENT)

An Act to provide for the establishment of a national standards body of India for the harmonious development of the activities of standardisation, marking and quality certification of goods, articles, processes, systems and services and for matters connected therewith or incidental thereto.

CHAPTER I: PRELIMINARY

Section 1. Short title, extent and commencement: (1) This Act may be called the Bureau of Indian Standards Act, 2016. (2) It extends to the whole of India. (3) It came into force on 12th October 2017, repealing the earlier Bureau of Indian Standards Act, 1986.

Section 2. Key Statutory Definitions: In this Act, unless the context otherwise requires:

- **'Bureau'** means the Bureau of Indian Standards established under section 3 as the National Standards Body of India.
- **'Conformity Assessment'** means the systematic demonstration that specified requirements relating to an article, process, system or service are fulfilled.
- **'Indian Standard'** means the standard established and published by the Bureau under section 10, in relation to any article, process, service or system.
- **'Standard Mark'** means the BIS Mark specified by the Bureau to represent a particular Indian Standard.
- **'Quality Control Order (QCO)'** means an order issued by the Central Government under section 16 directing mandatory compliance with an Indian Standard.

CHAPTER II: CENTRAL MANAGEMENT AND ESTABLISHMENT OF THE BUREAU

Section 3. Establishment of the Bureau: With effect from such date as the Central Government may appoint, there shall be established a Bureau to be called the Bureau of Indian Standards. The Bureau shall be a body corporate having perpetual succession and a common seal, with power to acquire, hold and dispose of property.

Section 9. Functions and Powers of the Bureau: The Bureau shall exercise such powers and perform such duties as assigned to it, including:

- 1. Establishing, publishing and promoting Indian Standards across agriculture, engineering, chemicals, textiles, electronics, IT, and services.
- 2. Specifying a Standard Mark (ISI mark, Hallmark, CRS mark) to govern quality certification.
- 3. Granting, renewing, suspending or cancelling licenses and certificates of conformity under diverse assessment schemes.
- 4. Establishing, maintaining or recognizing testing laboratories under Section 13 for batch and product conformity testing.
- 5. Representing India in international standardization organizations including ISO, IEC, and SARSO.

CHAPTER III: MANDATORY QUALITY CONTROL AND NOTIFICATIONS

Section 16. Power of Central Government to Direct Mandatory Compliance: If the Central Government is of the opinion that it is necessary or expedient so to do in the public interest or for the protection of human, animal or plant health, safety of the environment, prevention of unfair trade practices or national security, it may, after consulting the Bureau, notify any Indian Standard to be mandatory under a Quality Control Order (QCO). No person shall manufacture, import, sell, or distribute goods that do not conform to such mandatory standards.

CHAPTER IV: INSPECTION, SEARCH, SEIZURE AND ENFORCEMENT

Section 18. Prohibition of Improper Use of Standard Mark: No person shall use any Standard Mark or colourable imitation thereof, except under a valid licence or certificate of conformity issued by the Bureau.

Section 28. Powers of Search and Seizure by Enforcement Officers: Authorized BIS inspecting officers have the statutory power to enter and search any manufacturing premises, warehouse, or retail outlet where sub-standard goods or unauthorized standard marks are suspected, seize counterfeit articles, documents, and packaging materials.

CHAPTER V: PENALTIES AND COMPOUNDING OF OFFENCES

Section Reference	Nature of Contravention	Statutory Penalties Prescribed
Section 29 (1)	Violation of Mandatory QCO under Section 16	Imprisonment up to 2 years OR Fine not less than Rs 2,00,000 up to 10x value of goods
Section 29 (2)	Unauthorized use of Standard Mark under Sec 14/15	Imprisonment up to 2 years OR Fine not less than Rs 2,00,000 (Rs 5,00,000 for second conviction)
Section 29 (3)	Non-compliance with Hallmarking provisions	Fine not less than Rs 1,00,000 up to 5x value of gold article OR Imprisonment up to 1 year
Section 30	Compounding of Offences	Authorized Director General may compound offences before or after trial upon payment of compounding fee

Important Note: Under Section 34, offences committed by companies make directors and officers-in-charge personally liable unless they prove lack of knowledge and due diligence.